

GORSUCH, J., concurring in judgment

(Blackmun, J., dissenting); *Carlson*, 446 U. S., at 31 (Rehnquist, J., dissenting); *Malesko*, 534 U. S., at 75 (Scalia, J., concurring); *Hernández*, 589 U. S., at — (THOMAS, J., concurring); *post*, at 502–504 (opinion of GORSUCH, J.). And, more recently, we have indicated that if we were called to decide *Bivens* today, we would decline to discover any implied causes of action in the Constitution. See *Ziglar*, 582 U. S., at 134. But, to decide the case before us, we need not reconsider *Bivens* itself. Accordingly, we reverse the judgment of the Court of Appeals.

*It is so ordered.*

JUSTICE GORSUCH, concurring in the judgment.

Our Constitution’s separation of powers prohibits federal courts from assuming legislative authority. As the Court today acknowledges, *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), crossed that line by “impl[y-]ing” a new set of private rights and liabilities Congress never ordained. *Ante*, at 491; see also *Alexander v. Sandoval*, 532 U. S. 275, 286 (2001); *Nestlé USA, Inc. v. Doe*, 593 U. S. —, — — (2021) (GORSUCH, J., concurring).

Recognizing its misstep, this Court has struggled for decades to find its way back. Initially, the Court told lower courts to follow a “two step[p]” inquiry before applying *Bivens* to any new situation. *Ante*, at 492. At the first step, a court had to ask whether the case before it presented a “new context” meaningfully different from *Bivens*. *Ante*, at 492. At the second, a court had to consider whether “‘special factors’” counseled hesitation before recognizing a new cause of action. *Ibid.* But these tests soon produced their own set of questions: What distinguishes the first step from the second? What makes a context “new” or a factor “special”? And, most fundamentally, on what authority may courts recognize new causes of action even under these standards?

Today, the Court helpfully answers some of these lingering questions. It recognizes that our two-step inquiry really